DATA PROCESSING AGREEMENT (ART. 28 GDPR)

Between **Riverty GmbH** (the "Controller") and **DataNest B.V.** (the "Processor"), concluded on 2024-01-09.

1. Subject Matter

The Processor provides software services to the Controller and processes personal data of the Controller's customers for this purpose.

2. Instructions

The Processor processes personal data only on documented instructions from the Controller.

3. Confidentiality and Security

The Processor ensures that persons authorised to process the data are bound by confidentiality and implements the technical and organisational measures pursuant to Art. 32 GDPR.

4. Audits and Inspections

The Processor makes available all information necessary to demonstrate compliance and allows for and contributes to audits, including inspections, conducted by the Controller or an auditor mandated by the Controller.

5. Deletion and Return

At the end of the services the Processor deletes or returns all personal data at the choice of the Controller.

6. Governing Law

This Agreement is governed by German law.